Honda has not requested sanctions.

Ruling

1. Plaintiff's Motion is **denied**.
2. Each party shall bear their own fees and costs for this motion.
3. Defendant shall prepare a proposed order conforming to this ruling, attaching a copy of this tentative ruling no later than five (5) days from the date of the hearing.

Law & Motion

10. 1:30 PM CASE NUMBER: C22-02180
CASE NAME: DIOGO SANTANA VS. MC BUILDERS ENTERPRISES, INC.
AMEND JUDGMENT TO ADD JASIEL PERERIA NASCIMENTO AND LT BUILDERS AS ADDITIONAL JUDGMENT DEBTORS
FILED BY: SANTANA, DIOGO
TENTATIVE RULING:

Plaintiffs and judgment creditors Diogo Santana and May da Luz Ribiero move under CCP section 187 to amend the judgment to add Jasiel Pereira Nascimento and LT Builders Enterprises, Inc. as judgment debtors. The motion was properly served on the named defendant and on the proposed added judgment debtors, none of which has filed any opposition. The motion is **granted in part and denied in part**. It is granted as to Nascimento, but denied as to LT Builders.

> The authority provided to the courts by Code of Civil Procedure section 187 includes the power to add a judgment debtor where a person or entity is an alter ego of the original judgment debtor. (*Dow Jones Co. v. Avenel* (1984) 151 Cal.App.3d 144, 148 [198 Cal. Rptr. 457].) In doing so, the court is amending the judgment to add the real judgment debtor. (*Id.* at p. 149.) To prevail in a motion to add judgment debtors, WSI must show that (1) the parties to be added as judgment debtors had control of the underlying litigation and were virtually represented in that proceeding; (2) there is such a unity of interest and ownership that the separate personalities of the entity and the owners no longer exist; and (3) an inequitable result will follow if the acts are treated as those of the entity alone. (*Relentless, supra*, 222 Cal.App.4th at pp. 815–816.)

Triyar Hospitality Management, LLC v. WSI (II)-HWP, LLC (2020) 57 Cal.App.5th 636, 641.

> Factors for the court to consider include identical equitable ownership, comingling of funds, use of the same offices, disregard of formalities, and use of one entity as a mere shell for the affairs of another. (*Toho-Towa Co., Ltd. v. Morgan Creek Productions, Inc., supra*, 217 Cal.App.4th at pp. 1108–1109.) An important factor in determining alter ego liability is that a corporate entity is so undercapitalized that it is

likely to have no sufficient assets to meet its debts. (*Automotriz etc. v. Resnick* (1957) 47 Cal.2d 792, 796–797 [306 P.2d 1].)

Butler America, LLC v. Aviation Assurance Co. (2020) 55 Cal.App.5th 136, 146.

As to Nascimento, the Court has reviewed the uncontested factual evidence presented with the motion, and it is satisfied that plaintiffs have met its burden. It is clear on the evidence that Nascimento conducted the landlord business of MC Builders, as to the premises at issue in this case, as his personal business, with no pretense or attempt to separate himself from any corporate entity. The remainder of plaintiff's proof is equally convincing. Based on this showing that Nascimento and MC Builders were alter egos, the Court need not reach the additional grounds argued by plaintiffs. Nascimento has presented no contrary evidence and has filed no opposition.

The evidence is not equally convincing as to LT Builders. Although MC Builders was an alter ego of Nascimento, and assuming arguendo that LT Builders was also an alter ego of Nascimento, it does not follow that LT Builders and MC Builders were alter egos of each other. The evidence is equally consistent with the hypothesis that LT Builders and MC Builders were both businesses owned and run by Nascimento, but that their business operations and property holdings were separate from each other. No evidence shows convincingly that LT Builders was either essentially the same business operation as MC Builders, or a successor to it.

The Court notes, however, that as Nascimento is being added as a judgment debtor, any ownership interest he has in LT Builders (or its assets) might potentially be reachable in satisfaction of the judgment on the basis that it is an asset owned by a judgment debtor. The Court also notes that since LT Builders is a dissolved corporation, it may not make any practical difference whether or not it were added as a judgment debtor here.

11. 1:30 PM CASE NUMBER: C23-02401
CASE NAME: KIARA ROSS VS. KOTLIER ERNEST M.
CROSS COMPLAINT
FILED BY:
****TENTATIVE RULING:****

Before the Court is a demurrer by cross-defendants Doug Smith, Fuller Properties, LLC, and approximately 20 other entity cross-defendants to the cross-complaint by Sequoia Equities, Inc. and Alder Creek Management, Inc. The parties were ordered to meet and confer, and the hearing on the demurrer to the cross-complaint was continued to this date.

On August 12, 2026, the parties filed a joint report on their meet and confer efforts in which they asked the Court to continue the hearing to a date prior to September 16, 2026. Pursuant to the parties' joint request, the hearing on the demurrer is continued to **9:00 a.m. on September 9, 2026**. No appearance is required at the hearing on August 26, 2026.